STATE OF MICHIGAN
DEPARTMENT OF LICENSING AND REGULATORY AFFAIRS
BUREAU OF PROFESSIONAL LICENSING
BOARD OF MEDICINE
DISCIPLINARY SUBCOMMITTEE

In the Matter of

ERIC CLARK WELLING, M.D.
License No. EMC-000-1690
Respondent.

File No. 43-24-001248

CONSENT ORDER

On May 8, 2024, the Department of Licensing and Regulatory Affairs executed an Administrative Complaint charging Respondent with violating the Public Health Code, MCL 333.1101 *et seq*.

Respondent has admitted that the facts alleged in the Complaint are true and constitute violation(s) of the Public Health Code. The Michigan Board of Medicine Disciplinary Subcommittee (DSC) has reviewed this Consent Order and Stipulation and agrees that the public interest is best served by resolution of the outstanding Complaint.

Therefore, IT IS FOUND that the facts alleged in the Complaint are true and constitute violation(s) of MCL 333.16221(b)(x).

Accordingly, IT IS ORDERED that for the cited violation(s) of the Public Health Code:

Respondent's license to practice medicine in the state of Michigan is LIMITED for a minimum of one (1) day, commencing on the effective date of this Order. The terms of limitation shall be as follows:

1. **Respondent shall not engage in the practice of medicine in the state of Michigan until** Respondent provides written documentation from the Wyoming Board of Medicine that is satisfactory to the Department verifying Respondent has fully complied with the terms of discipline imposed in the Findings of Fact, Conclusions of Law, and Order Lifting Summary Suspension Upon the Wyoming Physician License of Eric C. Welling, M.D., dated December 14, 2023, and that Respondent holds a full and unencumbered license to practice medicine in the state of Wyoming.

2. Respondent shall report any change in the statute of the Respondent's Wyoming license to the Department at the email address set forth below within 30 days of such change.

Upon receipt of proof that is satisfactory to the Department that Respondent has complied with the terms of limitation of this Order, Respondent's limited license in the State of Michigan shall be automatically reclassified to a full and unlimited status, PROVIDED Respondent has paid the fine as set forth below, has complied with the terms of this Order and has not violated the Public Health Code.

Respondent shall upload reports and other documentation to the EDOC Record found under the Enforcement tab in Respondent's MiPLUS account or send as an email attachment to BPL-Monitoring@michigan.gov. Questions, requests for approval, and other communications shall be emailed to BPL-Monitoring@michigan.gov.

Respondent is FINED $250.00 to be paid to the State of Michigan within 90 days of the effective date of this Order. The fine **shall be paid electronically** through

Respondent's MiPLUS account **OR** by mail with a check or money order directly to: Department of Licensing and Regulatory Affairs, Enforcement Division, Compliance Section, P.O. Box 30189, Lansing, MI 48909. If the fine is paid by mail, the check or money order shall be made payable to the State of Michigan and shall clearly display File Number **43-24-001248**.

Respondent shall be solely responsible for payment of all costs incurred in complying with the terms of this Order.

If Respondent fails to comply with the terms and conditions of this Order, Respondent's license shall be automatically suspended for a minimum of one (1) day. If, within six (6) months of the suspension of the license, Respondent complies with the terms of this Order, the license shall be automatically reinstated.

If Respondent's license remains suspended for more than six (6) months, reinstatement is not automatic. If Respondent applies for reinstatement of the license, application for reinstatement shall be in accordance with sections MCL 333.16245 and 333.16247.

If Respondent violates any provision of this Order, or fails to complete any terms of the Order, the DSC many take disciplinary action pursuant to Mich. Admin. Code, R.338.1632 and MCL 333.16221(h).

This Order shall be effective 30 days from the date signed by the DSC's Chairperson or authorized representative, as set forth below.

MICHIGAN BOARD OF MEDICINE

By: Lauram Brown for
Chairperson, Disciplinary Subcommittee

Dated: January 15, 2025

STIPULATION

1. The facts alleged in the Complaint are true and constitute violation(s) of MCL 333.16221(b)(x).

2. Respondent understands and intends that by signing this Stipulation Respondent is waiving the right, pursuant to the Public Health Code, the rules promulgated thereunder, and the Administrative Procedures Act, MCL 24.201 *et seq*., to require the Department to prove the charges set forth in the Complaint by presentation of evidence and legal authority, and Respondent is waiving the right to appear with an attorney and such witnesses as Respondent may desire to present a defense to the charges.

3. This matter is a public record required to be published and made available to the public pursuant to the Michigan Freedom of Information Act, MCL 15.231 *et seq*., and this action will be reported to the National Practitioner Data Bank and any other entity as required by state or federal law.

4. The Department's representative is free to discuss this matter with the DSC and recommend acceptance of the resolution set forth in this Order.

5. This Order is approved as to form and substance by Respondent and the Department and may be entered as the final order of the DSC in this matter.

6. This proposal is conditioned upon acceptance by the DSC. Respondent and the Department expressly reserve the right to further proceedings without prejudice should this Order be rejected.

AGREED TO BY:

Laura Strand

Laura Strand, Analyst
Regulation Section I
Enforcement Division

Dated: December 10, 2024

AGREED TO BY:

Eric Welling

Eric Clark Welling, M.D.
Respondent

Dated: 12/10/24

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STATE OF MICHIGAN
DEPARTMENT OF LICENSING AND REGULATORY AFFAIRS
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BOARD OF MEDICINE
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In the Matter of

ERIC CLARK WELLING, M.D.
License No. EMC-000-1690
Respondent.

File No. 43-24-001248

ADMINISTRATIVE COMPLAINT

The Michigan Department of Licensing and Regulatory Affairs, Bureau of Professional Licensing, complains against Respondent as follows:

1. The Michigan Board of Medicine is an administrative agency established by the Public Health Code, MCL 333.1101 *et seq*. Pursuant to MCL 333.16226, the Board's Disciplinary Subcommittee is empowered to discipline persons for violations of the Public Health Code.

2. Respondent holds an expedited license to practice medicine in the state of Michigan under the Interstate Medical Licensure Compact. Respondent holds a controlled substance license. Respondent's state of principal licensure is the state of Utah. Respondent's address of record with the Department is Salt Lake City, Utah.

3. On December 14, 2023, the Wyoming Board of Medicine executed a Findings of Fact, Conclusions of Law, and Order Lifting the Summary Suspension Upon the Wyoming Physician License of Eric C. Welling, M.D.; Order Suspending the Wyoming

Physician License of Eric C. Welling, M.D., Wyoming Physician License No. 10015A; Order Imposing Civil Fine (Wyoming Order), which fined Respondent $5,000.00, suspended Respondent's Wyoming physician license, and barred Respondent from eligibility for reinstatement until Respondent demonstrates compliance with treatment recommendations including but not limited to entering a board-approved intensive partial hospital or day treatment program for professionals and establishing treating relationships with a board-approved psychiatrist, psychologist, and physician. The Wyoming Order was based, in part, on Respondent's failure to comply with a mental health examination order, a determination that Respondent is unfit to practice with reasonable skill and safety to patients, and Respondent making misrepresentations on Respondent's May 2022 renewal application to the Wyoming Board. A copy of the Wyoming Order, marked exhibit A, is attached and incorporated.

COUNT I

The action by the Wyoming Board, as set forth above, constitutes a final adverse administrative action by a licensure, registration, disciplinary, or certification board involving the holder of, or an applicant for, a license or registration regulated by another state or a territory of the United States, in violation of MCL 333.16221(b)(x).

RESPONDENT IS NOTIFIED that, pursuant to MCL 333.16231(8), Respondent has 30 days from the date of receipt of this Complaint to submit a written response to the allegations contained in it. Pursuant to MCL 333.16192(2) of the Code, Respondent is deemed to be in receipt of the Complaint three (3) days after the date of

mailing listed in the attached proof of service. The written response shall be submitted by email to the Department of Licensing and Regulatory Affairs, Bureau of Professional Licensing to **LARA-BPL-RegulationSection@michigan.gov**. If unable to submit a response by email, Respondent may submit by regular mail to the Department of Licensing and Regulatory Affairs, Bureau of Professional Licensing, P.O. Box 30670, Lansing, MI 48909.

Respondent's failure to submit an answer within 30 days is an admission of the allegations in this Complaint. If Respondent fails to answer, the Department shall transmit this Complaint directly to the Board's Disciplinary Subcommittee to impose a sanction, pursuant to MCL 333.16231(9).

Dated: May 8, 2024

Laura Strand, Analyst
Regulation Section I
Enforcement Division

Attachment

LLS/dem